

Daniel J. Sung (SBN 214537)
daniel.j.sung@mailinator.com
Alvarado & Sung LLP
3450 Wilshire Boulevard, Suite 1120
Los Angeles, California 90010
Telephone: (213) 555-0182
Attorneys for Escobedo, Noemi

**UNITED STATES DISTRICT COURT, CENTRAL DISTRICT OF
CALIFORNIA (WESTERN DIVISION)**

Escobedo v. Vermont Avenue

Case No. 2:25-cv-02327-BTK-MRWx

**COMPLAINT FOR DAMAGES AND
DEMAND FOR JURY TRIAL**

Hon. Bernard T. Kwiatkowski
Courtroom 5A

Plaintiff Escobedo, Noemi alleges as follows:

1. This action arises from unpaid overtime / wage and hour involving Vermont Avenue Auto Body, Inc., which occurred on or about February 23, 2023.
2. Venue is proper in this Court under Code of Civil Procedure section 395 because the obligations and injuries alleged occurred in the County of Los Angeles.
3. Defendant Vermont Avenue Auto Body, Inc. is represented in this matter by Sedgwick Claims Management Services.
4. This action is timely under CCP 338(a) (3 yrs); B&P 17208 (4 yrs UCL); the limitations period runs through February 23, 2026.

FIRST CAUSE OF ACTION — Failure to Pay Overtime (Lab. Code 510, 1194)

5. The foregoing allegations are realleged and incorporated by reference. As a direct and proximate result, plaintiff suffered damages in an amount to be proven at trial, exceeding the jurisdictional minimum of this Court.

SECOND CAUSE OF ACTION — Failure to Provide Meal and Rest Periods (Lab. Code 226.7)

6. Plaintiff incorporates each preceding paragraph as though fully set forth here. As a direct and proximate result, plaintiff suffered damages in an amount to be proven at trial, exceeding the jurisdictional minimum of this Court.

THIRD CAUSE OF ACTION — Unfair Business Practices (Bus. & Prof. Code 17200)

7. The foregoing allegations are realleged and incorporated by reference. As a direct and proximate result, plaintiff suffered damages in an amount to be proven at trial, exceeding the

jurisdictional minimum of this Court.

PRAYER FOR RELIEF

WHEREFORE, plaintiff prays for general and special damages according to proof, prejudgment interest, costs of suit, and such other relief as the Court deems just.

Dated: January 13, 2025

Alvarado & Sung LLP

By: _____

Daniel J. Sung

Attorneys for Escobedo, Noemi